



MEMORANDUM OF COMMISSIONERS ACTION

TO: County Attorney
FROM: Commissioners Office
SUBJ: Resolution 2006-158

This is to advise you that the Board of County Commissioners took the following action on this matter during a public meeting held

FRIDAY DECEMBER 22, 2006

(XXX) APPROVED () DENIED () OTHER

COMMENTS:

Document distribution ORIG: BOCC Vault
 COPY: CA - Bebo
 COPY: LU - Dale C.
 COPY: BOCC - Agenda File

Distributed by: *geh*

AGENDA ITEM #

3d

RESOLUTION 2006-158

A RESOLUTION CONDITIONALLY APPROVING BOULDER COUNTY LAND USE DOCKET #SU-06-016 ("CINGULAR WIRELESS (CEMEX, INC.) TELECOMMUNICATIONS FACILITY SU/SSDP"): A SPECIAL USE REVIEW WITH ASSOCIATED SITE SPECIFIC DEVELOPMENT PLAN REQUEST FOR THE INSTALLATION AND OPERATION OF A TELECOMMUNICATIONS FACILITY TO ALLOW THREE GROUPS OF PANEL ANTENNAE AND ATTENDANT EQUIPMENT ON TOP OF THE CEMEX CEMENT PLANT SILO, ON PROPERTY LOCATED AT 5134 UTE HIGHWAY, SOUTH OF UTE HIGHWAY, EAST OF NORTH FOOTHILLS HIGHWAY, IN SECTIONS 20, 21, 27, 28, AND 29, T3N, R70W

WHEREAS, Cingular Wireless ("Applicant") has requested approval for a special use permit, with associated site specific development plan, under Article 4-600 of the Boulder County Land Use Code ("the Land Use Code"), to install a telecommunications facility on top of the CEMEX cement plant which is located on the property as described in the caption to this Resolution, above ("the Subject Property"), in the General Industrial Zoning District in unincorporated Boulder County; and

WHEREAS, previously, the County has reviewed and approved the following telecommunications facilities in this same location: Docket #SU-01-08: Qwest Wireless; Docket #SU-96-30, Southdown, Inc. Roof Top Antenna; and Docket #SPR-97-160; and

WHEREAS, the Applicant now proposes to place three sets of four panel antennae at the top of the existing silo; and

WHEREAS, one set of antennae will face west and be placed flush to the side of the silo at a height of about 145 feet (to the centerline of the antennae); another set of antennae will be placed on the top of the existing service elevator, which extends above the existing silo, and will face east, being placed at a height of about 155 feet (measured to the centerline of the antennae); and a third antennae set will face south, being at a height of 167 feet (measured to the centerline of the antennae) and placed on a frame extending above the existing dust collector penthouse, which itself extends 10 feet above the roof of the silo; and

WHEREAS, all of the antennae will be painted the same color as the existing silo.

WHEREAS, the above-described request was processed and reviewed as Boulder County Land Use Docket #SU-06-016 ("the Docket"), all as further described in the Boulder County Land Use Department Planning Staff's Memorandum and written recommendation to the Boulder County Board of County Commissioners ("the Board") dated December 7, 2006, with its attachments ("the Staff Recommendation"); and

WHEREAS, on November 15, 2006, the Boulder County Planning Commission ("the Planning Commission") held a duly-noticed public hearing on the Docket, and recommended conditional approval of the Docket to the Board; and

WHEREAS, on December 7, 2006, the Board held a duly-noticed public hearing on the Docket ("the Public Hearing"), at which time the Board considered the Staff Recommendation and the recommendation of the Planning Commission, and also considered documents and testimony presented by the County Land Use Department Staff and a representative of the Applicant, with no members of the public being present to speak; and

WHEREAS, based on the Public Hearing, the Board finds that the Docket meets the criteria for special use approval set forth in Article 4-600 of the Land Use Code, and can be approved, subject to the conditions stated below, and finds further that the Docket, with the submission of the standard development agreement, meets the criteria in the Land Use Code for a site-specific development plan, subject to the conditions stated below.

NOW, THEREFORE, BE IT RESOLVED that the Docket is hereby approved, on the basis set forth in this Resolution, above, and subject to the following conditions:

- 1) The antennae, and all support structures shall be mounted to the silo as noted in the application documents for the Docket.
- 2) The color of the antennae shall match the existing silo. Before the issuance of a building permit, the Applicant shall provide a color sample for review and approval by the Land Use Department.

- 3) The heights of the proposed antennae shall not exceed that which is depicted in the application materials for the Docket.
- 4) The Applicant shall submit a Development Agreement to be reviewed and approved by the County Attorney and Land Use staff before its recordation. The vested right granted by this site specific development plan approval shall run for a period of three years, beginning on the date of adoption of this Resolution as set forth below. The vested right shall expire immediately upon the running of this three-year period, unless the Board in its discretion approves an extension pursuant to the applicable provisions of the Land Use Code.
- 5) There shall be a review hearing every seven years from the date of approval of this Special Use, and at seven-year intervals thereafter, to consider evolving telecommunication technologies and alternatives. During the hearing, if it is determined that the telecommunication facility approved herein is no longer needed, the Applicant/owner of such telecommunication facility shall remove the facilities at their own expense.
- 6) The Applicant shall agree to allow collocation of other telecommunication providers, if reasonable accommodations can be reached and subject to approval according to the applicable County land use review process.
- 7) The Applicant shall be subject to the terms, conditions, and commitments of record for the Docket.

A motion to approve the Docket, as stated above, was made by Commissioner Toor, seconded by Commissioner Pearlman, and passed by a 2-0 vote, with Commissioner Mayer being excused.

ADOPTED this 21st day of December, 2006, nunc pro tunc the 7th day of December, 2006.

BOARD OF COUNTY COMMISSIONERS
OF BOULDER COUNTY:



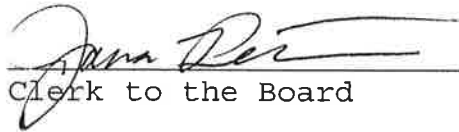
Ben Pearlman, Chair

Thomas A. Mayer, Vice Chair



Will Toor, Commissioner

ATTEST:


Clerk to the Board

Guidelines for Reviewing Requests for Collocation, Removal, or Replacement of Equipment on Existing Telecomm Facilities

New FCC rules pertaining to Section 6409(a) of the Middle Class Tax Relief and Job Creation Act of 2012 (the “Tax Act”) will go into effect 30 days after publication in the federal register, which occurred on January 8, 2015. These new rules will further limit local government zoning powers in the context of collocations on existing telecommunications towers. Some of the changes are detailed below.

Local Governments Must Approve...

Section 6409 (47 U.S.C. § 1455) requires local governments to approve any eligible facilities request for a modification of an existing tower or base station that does not substantially change the physical dimensions of the existing facility.

Eligible Requests for Modification

Subsection (a)(2) defines the term “eligible facilities request” as any request for modification of an existing wireless tower or base station that involves (a) collocation of new transmission equipment; (b) removal of transmission equipment; or (c) replacement of transmission equipment.

Collocation is defined as “the mounting or installation of transmission equipment on an eligible support structure for the purpose of transmitting and/or receiving radio frequency signals for communications purposes.” The term “eligible support structure” means any structure that falls within the definitions of “tower” or “base station.”

Non-Substantial Changes to the Physical Dimensions of Existing Facilities

A modification request that may be denied is one that is for collocation or for removal or replacement of equipment that *also* substantially changes the physical dimensions of the existing facility. The analysis of what “substantially changes the physical dimensions,” of an existing tower or base station, and therefore, may be denied, applies an objective standard. Specifically, a modification substantially changes the physical dimensions of a tower or base station if it meets any of the following criteria:

- (1) for towers outside of public rights-of-way, it increases the height of the tower by more than 10%, or by the height of one additional antenna array with separation from the nearest existing antenna not to exceed twenty feet, whichever is greater; for those towers in the rights-of-way and for all base stations, it increases the height of the tower or base station by more than 10% or 10 feet, whichever is greater;

(2) for towers outside of public rights-of-way, it protrudes from the edge of the tower more than twenty feet, or more than the width of the tower structure at the level of the appurtenance, whichever is greater; for those towers in the rights-of-way and for all base stations, it protrudes from the edge of the structure more than six feet;

(3) it involves installation of more than the standard number of new equipment cabinets for the technology involved, but not to exceed four cabinets;

(4) it entails any excavation or deployment outside the current site of the tower or base station;

(5) it would defeat the existing concealment elements of the tower or base station; or

(6) it does not comply with conditions associated with the prior approval of construction or modification of the tower or base station unless the non-compliance is due to an increase in height, increase in width, addition of cabinets, or new excavation that does not exceed the corresponding “substantial change” thresholds identified above. We further provide that the changes in height resulting from a modification should be measured from the original support structure in cases where the deployments are or will be separated horizontally, such as on buildings' rooftops; in other circumstances, changes in height should be measured from the dimensions of the tower or base station inclusive of originally approved appurtenances and any modifications that were approved prior to the passage of the Spectrum Act. Beyond these standards for what constitutes a substantial change in the physical dimensions of a tower or base station, we further provide that for applications covered by Section 6409(a), States and localities may continue to enforce and condition approval on compliance with generally applicable building, structural, electrical, and safety codes and with other laws codifying objective standards reasonably related to health and safety.

If none of these listed criteria apply, then the request does not substantially change the physical dimensions, and the request may not be denied.

The Shot Clock Rule

Section 706 of the Federal Telecommunications Act of 1996 (the “TCA”) requires that local decisions be made within a “reasonable period of time.” Previously, the FCC interpreted this provision, the “shot clock rule,” to impose a 90-day presumptive time limit for processing collocation applications.

60 Days for Collocations or for Removal or Replacement of Equipment

The new regulations require that eligible requests for non-substantial changes be processed within 60 days. As noted, eligible requests are those for: (a) collocation of new transmission equipment; (b) removal of transmission equipment; or (c) replacement of transmission equipment.

The clock starts when the application is first submitted (not when it is deemed complete), and stops only if the local government notifies the applicant within the first 30 days that the application is incomplete. The clock begins running again when the applicant makes a supplemental submission. Then, the local government only has 10 days to determine where *that* information is sufficient in order to stop the clock again.

Requests for further information must specify the code provision, ordinance, or application instruction that requires the information to be submitted.

The 150 day presumptive time limit to process all other requests is still in effect.

Failure to review or to approve the application within the specified time period results in automatic approval of the request.

Waitlists

The effect of the shot clock is that if a local government has not acted within the specified time period from submission of the application, and the applicant/carrier has not agreed to a longer processing time, the application is deemed approved.

Review of Applications

When an applicant asserts in writing that a request for modification is covered by § 6409, a local government may require the applicant to provide documentation or information only to the extent reasonably related to determining whether the request meets the requirements of the law. A local government may not require an applicant to submit any other documentation.

Conditions of Approval

The ability to condition approvals for non-substantial changes is limited. The conditions previously placed on the underlying structure such as camouflage or concealment requirements still apply. Building, electrical, structural, safety, and other laws codifying objective standards reasonably related to health and safety and approval can be applied and approval can be conditioned on compliance with such laws. Noise control ordinances and other “generally applicable health and safety requirements on the placement and operation” apply.

